

Amendment No. 1 to SB2650

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2650*

House Bill No. 2564

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 38, Part 1, is amended by adding the following as a new section:

40-38-120.

(a) As used in this section:

(1) "Directory host" means a private entity that establishes and maintains a directory of victim-centered restorative justice options that are available in the pilot counties;

(2) "Pilot county" means any county having a population of over five hundred thousand (500,000), according to the 2020 federal census or any subsequent federal census;

(3) "Restorative justice option" means a voluntary, victim-centered process that may include facilitated communication, conferencing, community repair agreements, or other structured accountability and repair practices, provided through a program listed in the directory established pursuant to this section; and

(4) "Victim" means the same as defined in § 40-38-203; provided, however, that victim does not include a minor victim or an immediate family member of a minor victim, unless the minor victim was a homicide victim.

(b) During the pilot period described in subsection (f), a notifying entity in subsection (d) shall provide a victim with a standardized notice that includes:

(1) Contact information for the directory host so that the victim may request additional information and access the directory; and

(2) The statements required by subsection (c).

(c) The standardized notice shall state:

(1) Victim-centered restorative justice options may be available in some cases;

(2) Participation is voluntary and the victim is not required to pursue a restorative justice option;

(3) The decision whether to participate does not limit any rights or remedies available to the victim;

(4) The district attorney general is not required to offer, approve, or delay prosecution based on a victim's request for information or participation in any restorative justice option listed in the directory;

(5) A decision by any person not to participate shall not be the basis for an adverse inference in charging decisions, plea negotiations, sentencing recommendations, or conditions of release; and

(6) Participation may have legal implications for any participant.

(d) Notification of restorative justice options in a pilot county must be provided to a victim as follows:

(1) In applicable cases, the clerk of the court having jurisdiction over criminal cases shall use existing resources and forms of communication to provide the standardized notice to a victim in connection with the first court appearance at which the case is pending and the victim is identifiable;

(2) A law enforcement agency that takes the report or is otherwise in contact with a victim may provide the standardized notice electronically or in writing when contact information is available; and

(3) An assigned victim-witness coordinator may provide the standardized notice electronically or in writing and may respond to requests for additional information.

(e) Providing the standardized notice satisfies the requirement in subsection (d).

A notifying entity identified in subsection (d) is not required to determine eligibility, appropriateness, program availability, or to make a referral. A single notification to the victim satisfies this section.

(f) The notification requirements in this section apply in pilot counties for twenty-four (24) months beginning on November 1, 2026, unless extended by the general assembly. If a directory has not yet been established by November 1, 2026, the notification requirements in subsection (d) will begin once the directory is available.

(g) A directory that is provided to victims pursuant to this section must, at a minimum, include for each listed restorative justice option:

(1) Contact methods;

(2) Counties served and service modality, including whether service is provided in-person or virtually;

(3) A statement that availability may vary by county and program capacity;

(4) A statement that each restorative justice option included in the directory is currently operating in each pilot county;

(5) A statement that each restorative justice option has established eligibility criteria, screening practices, informed-consent standards, trauma-informed practices, safety planning procedures, and any other protocols that the directory host deems necessary for listing a restorative justice option; and

(6) A method for submitting feedback or complaints to the directory host.

(h) The directory is informational, and a listing in the directory does not constitute endorsement by this state, a court, a district attorney general, a law

enforcement agency, the directory host, the notifying entities described in subsection (d), or any other state or local entity.

SECTION 2. Tennessee Code Annotated, Title 37, Chapter 1, Part 1, is amended by adding the following as a new section:

37-1-193.

(a) In the following cases, a juvenile court clerk in a county that is part of a pilot project under § 40-38-120 must provide notification of a restorative justice option to a victim, as defined in § 40-38-120, during the pilot period identified in § 40-38-120:

(1) A case in which the juvenile is eligible for adjudication as a serious youthful offender pursuant to § 37-1-131(g); and

(2) A case in which the juvenile is eligible for transfer to criminal court pursuant to § 37-1-134 or § 37-1-191.

(b) Notification of a restorative justice option by the juvenile court clerk pursuant to subsection (a) does not relieve a criminal court clerk of the duty to notify a victim of a restorative justice option under § 40-38-120.

(c) The juvenile court clerk must provide the notification of a restorative justice option required by this section using existing resources and forms of communication.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.